

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

COOL LIVING LLC, *Complainant*

v.

ALPI U.S.A., INC. AND ALPI AIR & SEA A/S, *Respondents.*

DOCKET NO. 25-28

Served: June 17, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge.*

ORDER ON COMPLAINANT’S MOTION TO QUASH

This matter came on for consideration of Complainant’s Motion to Quash Notices of Deposition or, in the Alternative, for a Protective Order and Appendix to Complainant’s Motion to Quash Notices of Deposition or, in the Alternative, for a Protective Order filed June 10, 2026 (Dkt. 23 and 24); and Respondents’ Opposition to Complainant’s Motion to Quash Notices of Deposition or in the Alternative, for a Protective Order filed June 11, 2026 (Dkt. 26). For the reasons set forth below, the motion is **DENIED**.

I. Background

Complainant seeks to quash notices of deposition served June 5, 2026, scheduling depositions of Complainant’s principals to be taken on June 11 and 12, 2026, shortly before the discovery deadline of June 13, 2026, and the effective date of the withdrawal of Complainant’s counsel on June 14, 2026, pursuant to the Order on Motion to Withdraw dated June 8, 2026. (Dkt. 22.) The deposition notices command the testimony of Anna Farkas and Tony Hopkins, both of whom are officers and principals of Complainant, residing in Spain and Denmark, respectively. Complainant requests as alternative relief that a protective order be entered prohibiting the depositions on the date noticed or any time in the future, and requiring the testimony from these witnesses to be presented by declaration or affidavit submitted with the parties’ briefs.

On June 10, 2026, Respondents requested that a status conference be promptly scheduled to address the discovery dispute. On the same date, the Order Setting Status Conference was served, which, among other things, provided that no depositions shall be conducted absent further order. On June 12, 2026, at 10:00 am EDT, a status conference was conducted. Pursuant to the Order Following Status Conference served June 12, 2026 (the “June 12 Order”), I found that good cause existed for the discovery deadline to be extended to conduct the remote depositions of the only two witnesses identified by Complainant as having relevant knowledge during written discovery.

The June 12 Order also stated that Respondents acted reasonably in serving deposition notices shortly before the discovery deadline. In short, on May 29, 2026, Respondents' counsel advised Complainant's counsel that Respondents' consent to the motion to withdraw was conditioned on not prejudicing its right to conduct discovery, including its right to take deposition discovery from Complainant. Counsel for the parties also discussed a 30 day extension of the discovery deadline due to the plan for Complainant's counsel to file a motion to withdraw. Nevertheless, Complainant would not consent to a motion to extend. Shortly after Respondents' counsel learned about the lack of consent, Respondents' counsel issued the deposition notices.

The June 12 Order directed that the depositions be taken on a date agreed by the parties within 30 days. The June 12 Order also provided that an order on the motion to quash would be issued separately. The present order sets forth the rationale for my decision to deny the motion to quash and to extend discovery to allow the depositions to be taken at a later date.

II. Argument of the Parties

Complainant requests that the depositions be quashed pursuant to 46 C.F.R. § 502.132(a), which provides in pertinent part that “the person to whom the subpoena is directed may, by motion with notice to the party requesting the subpoena, petition the presiding officer to quash or modify the subpoena.” In the alternative, Complainant requests that a protective order be entered to “protect a party or person from annoyance, embarrassment, oppression, or undue burden or expense.” 46 C.F.R. § 502.141(j).

In support of the motion to quash, Complainant argues that Respondents: failed to give reasonable notice in accordance with 46 C.F.R. § 502.143(b)(1); seek to depose a corporate entity without describing with particularity the matters for examination in accordance with 46 C.F.R. § 502.143(b)(6); failed to obtain a written stipulation or order permitting the depositions to be taken remotely pursuant to 46 C.F.R. § 502.143(b)(4); and failed to comply with the requirements set forth in 46 C.F.R. § 502.142(b) applicable to depositions in a foreign country.

Complainant argues in support of its alternative request for entry of a protective order that: Respondents failed to provide adequate advance notice to allow sufficient time to prepare corporate representative witnesses; the testimony can adequately be provided in the form of declarations or affidavits; to the extent depositions are sought in the witnesses' individual capacities, that the burden exceeds their value as they cannot bind Respondents, and; extending discovery would impose undue expenses on Complainant.

Respondents argue that Anna Farkkas and Tony Hopkins were identified by Complainant as the only witnesses with knowledge of relevant events, that Respondents seek to obtain deposition testimony of the witnesses in their individual capacity, that the deposition notices were timely served within the applicable discovery period, and that the deposition notices are reasonable under the circumstances. In this regard, Respondents state that counsel had discussed a 30 day extension of the discovery period at the conference held on May 29, 2026, concerning the motion to withdraw by Complainant's counsel. Respondents argue that the notices were served timely on June 5, 2026, when Respondents learned that Complainant would not consent to

an extension of the discovery period. Respondents also argue that the failure to comply with the requirements applicable to depositions in foreign locations and remote depositions is curable.

III. Relevant Law

A. Motion to Quash

Under Commission Rule 132(a), a person to whom a subpoena is directed may move to quash or modify the subpoena. 46 C.F.R. § 502.132(a). Under FED. R. CIV. P. 45(d)(3), a court must quash or modify the subpoena where it exceeds geographical limitations, requires disclosure of privileged or other protected matter if no exception or waiver applies, or subjects a person to undue burden.

B. Protective Order

Commission Rule 201 permits the presiding officer to issue a protective order when such order is necessary to “protect a party or person from annoyance, embarrassment, oppression, or undue burden or expense.” 46 C.F.R. § 502.141(j). The presiding officer may also limit the frequency or extent of discovery where the party seeking discovery “has had ample opportunity to obtain the information by discovery in the action” or where “the burden or expense of the proposed discovery outweighs its likely benefit.” 46 C.F.R. § 502.141(e)(2)(ii).

C. Reasonable Notice

Commission Rule 203 requires a party seeking to depose a person to provide “reasonable written notice” to every other party. 46 C.F.R. § 502.143(b)(1). Rule 203 does not define “reasonable.” Where a situation is not covered by a specific Commission Rule, the Federal Rules of Civil Procedure are followed to the extent consistent with sound administrative practice. 46 C.F.R. § 502.12. The federal rules are also silent on “reasonable” notice for a deposition. Rule 32 of the Federal Rules states that a deposition taken on less than 14 days’ notice is “on short notice,” and provides that such a deposition may not be used against a party when the party has filed a motion for a protective order and the motion is still pending at the time of the deposition. FED. R. CIV. P. 32(a)(5)(A). But the rule does not prohibit such short-notice depositions, and District of Columbia Local Civil Rule 30.1 establishes 7 days as presumptively reasonable, which may be lengthened or shortened by the court for good cause.

Whether notice is impermissibly short in a particular case is a fact-sensitive inquiry. *In re Sulfuric Acid Antitrust Litig.*, 231 F.R.D. 320, 327–28 (N.D. Ill. 2005). Relevant considerations include the complexity of the case, the number of deponents’ (and lawyers’) schedules to coordinate, preparation required, and travel. Courts have found three business days unreasonable given attorneys’ busy litigation schedule, two weeks unreasonable where there are 85 depositions to prepare for, and four days unreasonable when travel is necessary. *Id.* On the other hand, one day might be sufficient where the parties are on an expedited discovery schedule, the need for a deposition arises suddenly, and the deposition is conducted remotely. *See Charm Floral v. Wald Imports, Ltd.*, No. C10-1550-RSM, 2012 WL 424581 at *2 (W.D. Wash. Feb. 9, 2012).

IV. Relevant Facts

1. Respondents seek to depose both Anna Farkas and Tony Hopkins in their individual capacity and not in their representative capacity. (June 12, 2026, Order Following Status Conference at No. 1, Dkt. 27.)

2. Anna Farkas and Tony Hopkins were the only two individuals identified as having relevant knowledge in response to written discovery served by the parties. (June 12, 2026, Order Following Status Conference at No. 2, Dkt. 27.)

3. Anna Farkas resides in Spain, that Tony Hopkins resides in Denmark, and that both are officers and principals of Complainant. (June 12, 2026, Order Following Status Conference at No. 3, Dkt. 27.)

4. At the good faith conference held May 29, 2026, to discuss the motion to withdraw by Complainant's counsel, Complainant's counsel and Respondents' counsel discussed extending the discovery deadline by 30 days. Complainant's counsel supported the 30 day extension because it would allow for transition of the case files to new counsel that Complainant intended to retain. (Motion to Quash Appendix, Exhibits B and C, at MTQ 7 and 9.)

5. On June 4, 2026, Respondents' counsel sent an email to Complainant's Counsel requesting a status of the motion to extend discovery by 30 days. (Motion to Quash Appendix A, at MTQ-4.)

6. On June 4, 2026, Complainant's counsel responded to Respondents' counsel that Complainant would not authorize a 30 day extension of the discovery period. (Motion to Quash Appendix A, at MTQ-4.)

7. On June 5, 2026, Respondent served notices of deposition scheduling the remote depositions of Anna Farkas and Tony Hopkins on June 11 and June 12, 2026, subject to written stipulation or order that had yet to be obtained. (Motion to Quash Exhibit E.)

8. At the status conference conducted June 12, 2026, Tony Hopkins consented in his capacity as authorized representative of Complainant to remote depositions of both Anna Farkas and Tony Hopkins within 30 days. (June 12, 2026, Order Following Status Conference at No. 5, Dkt. 27; Notice of Appearance at Dkt. 21.)

9. Attorney Nolan agreed to represent Complainant solely for purposes of defending the depositions of Anna Farkas and Tony Hopkins, and any ancillary matters related to or arising from those depositions, including but not limited to scheduling, discovery disputes, and claims of privilege. (June 12, 2026, Order Following Status Conference at No. 7, Dkt. 27.)

V. Discussion

In this case, the record shows that the notices of deposition were served June 5, 2026, directing the witnesses to appear on June 11 and 12, 2026, providing six and seven days notice, respectively. While the federal rules appear to suggest that at least two weeks' notice is a best

practice, it cannot be said that the notice in this case – six and seven days – is *per se* impermissibly short.

Upon review of the pending motion and opposition and the statements made by the parties at the status conference, I find that the notices of deposition of Anna Farkas and Tony Hopkins were timely served within the applicable discovery period. Despite that the notices were procedurally defective in that they provide for remote depositions of foreign nationals without obtaining a court order or written stipulation from the opposing party or satisfaction of the requirements for depositions in a foreign country in accordance with 46 C.F.R. § 502.142(b), I find that the deposition notices are reasonable and that good cause exists to extend the discovery deadline to allow them to be taken.

The record establishes that both witnesses are officers of Complainant who were identified as the only individuals with relevant knowledge in written discovery. The record also establishes that counsel for both parties discussed and were willing to agree to a 30 day extension of discovery during the good faith conference to discuss the motion to withdraw filed by Complainant's counsel. It also shows that no motion for extension was filed by Complainant's counsel because Complainant ultimately refused to consent to an extension. Given the imminent withdrawal of Complainant's counsel and the discussion of an extension by counsel, it was reasonable for Respondents' counsel to have assumed that an extension would be granted, and when it did not occur, Respondents' counsel acted promptly to serve deposition notices within the established deadline. For this reason, I find that the actions of Respondents' counsel in noticing the depositions with short notice upon learning that no 30 day extension would occur to have been reasonable. Due process and the need for a fully developed record require that the depositions of the two main witnesses with relevant knowledge be taken in advance of briefing.

Despite that the notices were procedurally defective in that they provide for remote deposition of foreign nationals without obtaining a court order or written stipulation from the opposing party or satisfaction of the requirements for depositions in a foreign country in accordance with 46 C.F.R. § 502.142(b), I find that the deposition notices are reasonable under the circumstances. Specifically, I find that: Respondent's counsel acted promptly to serve the notices after discovering that the anticipated extension would not occur; and that it was reasonable given the limited open discovery period for counsel to attempt to cure the technical deficiencies after the notices were served.

As no deposition subpoena was served, I find that entry of an order quashing or modifying a subpoena pursuant to Commission Rule 123(a) is not appropriate. The record does not otherwise support a finding that a protective order pursuant to Rule 201 is necessary to "protect a party or person from annoyance, embarrassment, oppression, or undue burden or expense" given the brief extension of 30 days provided by the Order Following Status Conference served June 12, 2026, and the fact that deposing the individuals identified as having knowledge is standard practice. Moreover, I find that Complainant's request that declarations or affidavits in lieu of deposition is not a suitable alternative because it would deprive Respondents of the right to cross-examine the witnesses most likely to have relevant information about the issues in dispute.

VI. Order

For the foregoing reasons, it is

ORDERED that Complainant's Motion to Quash Notices of Deposition or, in the Alternative, for a Protective Order is **DENIED** and the depositions of Anna Farkas and Tony Hopkins shall proceed in accordance with the Order Following Status Conference served June 12, 2026.

MARY A. HERVEY -S

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Mary Apostolakos Hervey
Administrative Law Judge